

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 24-13

ACCESS ONE TRANSPORT, INC.
Complainant,

v.

COSCO SHIPPING LINES CO. LTD.
Respondent.

**COMPLAINANT’S RESPONSE TO RESPONDENT’S
PROPOSED FINDINGS OF FACT**

Comes now, Complainant, Access One Transport, Inc. (hereinafter “Access”, “AOT” or “Complainant”) and hereby submits its response to Respondent, COSCO Shipping Lines Co. Ltd.’s (“COSCO” or “Respondent”) Proposed Findings of Fact. COSCO’s proposed facts are reproduced here verbatim, followed by Access’ reply thereto in **BOLD** typeface.

I. INTRODUCTION

RPFF1. On June 18, 2024, Respondent filed its Verified Answer (“Answer”) to Access One Transport, Inc. (“Complainant” or “AOT”) Verified Complaint (“Compl.”). Answer to Verified Complaint (“Compl.”) at 1-21.

Access Response: Admit.

RPFF2. The “relevant time period” of the remaining unwaived detention charges in AOT’s claims is September 22, 2021 through July 7, 2022. (CX01430-01439).

Access Response: Admit in part and denied in part. Admit that has paid detention charges for the date range of September 22, 2021 – July 7, 2022. However, the date range for the unwaived detention charges related to 61 containers as identified by Access is April 16, 2022 – July 7, 2022 see Access Claim Summary CX01430-CX01435. Denied that date range is the “Relevant Time Period” as defined by Access. The Relevant Time Period is defined by Access as July 2021 – October 2022 (Access Brief at page 6)

RPFF3. The “subject shipments” are those containers for which “detention charges [were] assessed against ACCESS ONE that have not been previously waived.” Compl. ¶ 39.

Access Response: Denied. The complaint at ¶39 does not so define “subject shipments” nor is ¶39 limited to containers where detention charges were not previously waived. ¶39 for ease of reference is repeated here:

“39. COSCO’s violations of the Act have caused the following damages to Complainant.

a. detention charges assessed against ACCESS ONE that have not been previously waived by COSCO in the minimum amount of \$336,635.00; and

b. Chassis charges associated with the storage of COSCO’s empty containers in the minimum amount of \$124,160.00; and

c. Storage costs for of COSCO’s empty containers in the minimum amount of \$139,690.00; and

d. Stop off charges in the minimum amount of \$31,875.00; and

e. Re-delivery charges in the minimum amount of \$20,400.00; and

f. damages associated with the interference of existing contracts between ACCESS ONE and its customers according to proof; and

g. damages associated with the inability to accept certain work because of the lack of space and/or equipment caused by the empty COSCO containers according to proof; and

h. damages associated with the disruption of the operations of ACCESS ONE as a result of COSCO’s refusal to accept its empty containers according to proof; and

i. damages related to any “shut out” of ACCESS ONE from its ability to pick up COSCO shipments for ACCESS ONE’s customers according to proof.”

The above language was repeated in COSCO's verified answer, CX00015-CX00016.

RPFF4. AOT alleged that "COSCO has charged detention in an unreasonable, arbitrary and capricious manger [sic]." Compl. ¶ 24.

Access Response: Denied as posed. Access' complaint at ¶24 does not contain that allegation.

Access admits it did allege, in part at ¶25 that "COSCO has charged detention in an unreasonable, arbitrary and capricious manger." That quote is only part of the totality of the allegations in ¶25 of Access Complaint. The language of ¶¶ 24 and 25 were repeated in COSCO's answer, CX0009-CX00010.

RPFF5. AOT alleged that it "would have been able to return containers to COSCO during free time but for COSCO and it's terminal's actions." Compl. ¶ 28.

Access Response: Admit.

RPFF6. AOT further alleged that "COSCO involuntarily forced ACCESS ONE to act as a storage facility for COSCO empty containers without compensation. Such actions not only should have incurred storage and related charges for the containers for COSCO's account, it also caused ACCESS ONE to incur and assess storage and chassis charges to its customers, and interfered with ACCESS ONE's operations and its relationship with its customers." Compl. ¶ 29.

Access Response: Admit in part and denied in part. Access admits the language appeared in ¶29 of its complaint but denies that represents the full language of ¶29, see CX00012.

RPFF7. AOT alleged the following damages: "detention charges . . . that have not been

previously waived by COSCO in the minimum amount of \$336,635.00”; “chassis charges associated with the storage of COSCO’s empty containers int [sic] the minimum amount of \$124,160.00”; “storge [sic] costs for of COSCO’s empty containers in the minimum amount of \$139,690.00;” “stop off charges in the minimum amount of \$31,875.00”; “redelivery charges in the minimum amount of \$20,400.00;” and various other types of damages without specified monetary amounts. Compl. ¶ 39.

Access Response: Admit, but the quote is incomplete. See CX00015-CX00016.

RPFF8. AOT’s President, Nobu Suzuki, verified the Complaint. Compl. At 13.

Access Response: Admit.

II. THE PARTIES

A. COMPLAINANT ACCESS ONE TRANSPORT

RPFF9. Complainant Access One Transport, Inc., is a California corporation operating as a motor carrier. Compl. ¶ 1.

Access Response: Admit.

RPFF10. AOT and COSCO are parties to a Uniform Intermodal Interchange Agreement and Addendum (“UIIA”). CX00148-00153.

Access Response: Admit.

RPFF11. AOT is an “Equipment User” (“EU”) pursuant to the UIIA. CX00148.

Access Response: Denied. The UIIA at CX00148 does not contain any mention or definition

of “Equipment User”, see CX00148.

RPFF12. With respect to the subject shipments, AOT was not a shipper as defined by 46 U.S.C. § 40102(23). [RX35] (Complainant’s Responses to Respondent’s Requests for Admission at 5 (August 22, 2024)).

Access Response: Admitted in part and denied in part. Admitted that Access is not a shipper as to all shipments at issue in this matter, but denied as to COSCO’s use of “subject shipments”, see Access Response to RPFF3.

RPFF13. With respect to the subject shipments, AOT never appeared as a shipper or consignee on any bill of lading issued by COSCO. [RX35] (Complainant’s Responses to Respondent’s Requests for Admission at 5 (August 22, 2024)).

Access Response: Denied. Access admitted it was “unaware of being listed as a shipper or consignee on any ocean bill of lading issued by COSCO” see RX035 and denied to the extent COSCO’s alternative definition of “subject shipments”, see Access Response to RPFF3.

RPFF14. AOT, in its ordinary course of business, was engaged to dray full and empty containers from various terminals at the Ports of Los Angeles and Long Beach (“LA/LB”). Compl. ¶ 10.

Access Response: Admit, but incomplete. Access indicated in ¶10 of its complaint that as part of its operations would dray full and empty containers *to and from* various terminals. See Complaint ¶10, repeated at CX00005.

RPFF15. During the relevant period, AOT's customers were shippers who at times transported cargo using COSCO's services. AOT both pulled full containers from the terminal and returned empty containers on behalf of its customers. [RX35] (Complainant's Responses to Respondent's Requests for Admission at 4-5 (August 22, 2024)).

Access Response: Admit in part and denied in part. Denied in that the proposed fact has not been admitted by Access in any request for admission as cited. See RX035. Access also denies COSCO's attempt to redefine the "relevant period". See Access Response to RPFF2. Instead Access admits it stated in response to request for admission no 2 at RX34-35, "Instead, AOT was responsible for the drayage of oceanborne containers which COSCO transported on behalf of AOT and COSCO's customers including acting as a house trucker for COSCO for Tireco loads." See RX034-035. Access admits it pulled full containers from terminals and returned empty containers to terminals for Access and COSCO's customers.

RPFF16. With respect to the subject shipments, AOT was responsible for returning COSCO's empty containers to the on dock and off dock marine terminal container yards designated by COSCO. [RX38] (Complainant's Responses to Respondent's Requests for Admission at 8 (August 22, 2024)).

Access Response: Admit in part and denied in part. Denied that the requests for admissions state Access was "responsible" for returning COSCO's empty containers, see RX038; Denies COSCO's attempt to redefine the "subject shipments", see response to RPFF3. Admits Access stated: Admit that empty containers are to be returned to COSCO's designated on dock and off dock marine terminal container yards as designated by COSCO. See RX038

B. RESPONDENT COSCO SHIPPING LINES CO. LTD.

RPFF17. Respondent COSCO Shipping Lines Co. Ltd. (“Respondent” or “COSCO”) is a vessel-operating common carrier (“VOCC” or ocean common carrier) as defined by 46 U.S.C. § 40102(7). Answer at 4.

Access Response: Admit.

RPFF18. Respondent is headquartered at No. 378 Dong Da Ming Road, Shanghai, 200080, People’s Republic of China. Answer at 2.

Access Response: Admit

RPFF19. COSCO Shipping Lines (North America) Inc. (“CSLNA”) is COSCO’s agent in the United States with offices located at 100 Lighting Way, Secaucus, NJ 07094. Answer at 3.

Access Response: Admit.

RPFF20. COSCO is an “Equipment Provider” (“EP”) pursuant to the Uniform Intermodal Interchange Agreement and Addendum (“UIIA”) with AOT. CX00150 (COSCO’s UIIA Addendum, Section 1).

Access Response: Admit in part and denied in part. Access admits in common terms COSCO could be considered an “Equipment Provider” but denies that language appears in the UIIA. Instead COSCO is defined as “Provider”. See UIIA CX00150.

C. TERMINALS

RPFF21. Long Beach Container Terminal is a marine terminal located in the Middle Harbor

Terminal in the Port of Long Beach. *See* <https://www.lbct.com/Home/Default> (last visited January 19, 2025).

Access Response: Admit.

RPFF22. Fenix Marine Services (“FMS”) is a marine terminal located on Terminal Island in the Port of Los Angeles. *See* <https://fenixmarineservices.com/terminal/> (last visited January 19, 2025).

Access Response: Admit

RPFF23. Pacific Container Terminal (“PCT”) is a marine terminal located on Pier J at the Port of Long Beach. *See* <https://www.ssamarine.com/locations/pacific-container-terminal/> (last visited January 19, 2025).

Access Response: Admit

RPFF24. Everport Terminal Services (“ETS”) operates a marine terminal located on Terminal Island in the Port of Los Angeles. *See* <https://www.etslink.com/> (last visited January 19, 2025).

Access Response: Admit

RPFF25. Advent eModal (“eModal”) is a web-based port community system used by terminals, carriers, truckers, chassis providers, and others. *See* “CargoSpring Acquires Advent eModal”, Business Wire, December 16, 2024 (available at <https://www.businesswire.com/news/home/20241213332327/en/CargoSprint-Acquires-Advent->

eModal (last visited January 19, 2025).

Access Response: Admit.

RPFF26. During the relevant period, COSCO used eModal to send daily updates to AOT regarding terminal operations. *See, e.g.*, CX 01312-01418.

Access Response: Admitted in part and denied in part. Access admits COSCO used eModal to send daily updates but Denied as to COSCO's unilateral definition of "relevant period", see response to RPFF2.

RPFF27. In addition to emails from eModal and ocean carriers, some motor carriers also use third-party services such as Blue Cargo to obtain information regarding terminal status and appointment availability. *See* CX01447. Blue Cargo is a third-party platform that collects information about vessel schedules, weekly terminal gate schedules, and container status, and provides notifications to subscribers. *See* <https://www.bluecargo.io/> (last visited January 19, 2025).

Access Response: Admit.

RPFF28. COSCO would designate terminal locations for empty returns via eModal and through email information from COSCO's Long Beach Customer Service Center. (CX 01311-CX01418). eModal is a web-based platform which provides visibility as to terminal status and the ability to make appointments for the pickup of full containers or the return of empty containers to terminals at LA/LB. *Id.*

Access Response: Admit and part and denied in part. Access Denies that eModal has any

ability to make appointments for the pick up of full containers or return empty containers. Instead eModal only states appointments are on a first come first served basis and refers motor carriers to make appointments directly with the terminals, see CX01312-01313. See also RPFF29. Access admits the balance of this fact.

RPFF29. Once COSCO designates a terminal location for empty returns, a motor carrier must then make an appointment with the designated terminal before returning the empty container. CX01447.

Access Response: Admit.

RPFF30. There are a limited number of terminal appointments available on a given day. COSCO's eModal email broadcasts included the reminder, "An appointment is required for all terminal transactions on a First Come First Serve basis." (CX01313).

Access Response: Admit.

RPFF31. The UIIA provides for how interchange of containers is made and paid for. "Saturdays, Sundays, and Holidays are not counted when computing the free time allowance. Holidays refer to those that are enumerated in labor contracts at the point of interchange." UIIA Addendum, Section 5. CX00151.

Access Response: Admit in part and denied in part. Admit the UIIA contains the quoted language. Denied as the UIIA portions cited do not indicate how interchange of containers are made and paid for, but rather is only directed which days may not be billed for. See CX00151. Further additional sources such as COSCO's tariff and service contract may

impact the amount and target for any detention billing see CF 14-15.

RPFF32. The UIIA provides for how free time on containers is allowed and calculated. “Free Time shall be allowed for the equipment commencing the day the equipment is delivered to the Motor Carrier at the terms indicated below. Saturdays, Sundays, and Holidays shall be excluded in computing free time. Coincident with the expiration of free time, per diem charges shall be assessed on the equipment for each calendar day until the day said equipment properly returned to the Provider.” UIIA Addendum, Section 6. CX00151-CX00152.

Access Response: admit in part and denied in part. Admit the quoted language is in the UIIA but is incomplete. Denied as to the full accuracy of the proposed fact. COSCO admits per diem is not charged on weekends or holidays, see RPFF34. Further additional sources such as COSCO’s tariff and service contract may impact the amount and target for any detention billing see CF 14-15.

RPFF33. Pursuant to the UIIA, COSCO assesses per diem detention charges on container equipment that is not returned within the free time allotted. UIIA Addendum, Section 6. CX00151-CX00152.

Access Response: Admit in part and denied in part. The UIIA does provide how free time is calculated per the provisions cited. Denied as to the full accuracy of the proposed fact. COSCO admits per diem is not charged on weekends or holidays, see RPFF34. Further additional sources such as COSCO’s tariff and service contract may impact the amount and target for any detention billing see CF 14-15.

RPFF34. In conformity with the UIIA and local law, COSCO does not assess per diem detention charges on weekend days or holidays. CX00151 (COSCO UIIA Addendum, Section 6).

Access Response: Admit that COSCO's policy is not to assess per diem charges on weekend days or holidays.

RPFF35. The UIIA provides the point of contact for disputing per diem invoices. "Effective November 30, 2014, all Per Diem invoice disputes must be sent to the following e-mail address: shaperdiem@coscon.com." CX00153.

Access Response: Admitted but not relevant. This proposed fact is not relevant, in that COSCO has admitted Access had disputed all detention invoices, CF29. Additionally, COSCO has now admitted for all cancelled invoices and their related billed dates, Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68.

RPFF36. COSCO's Long Beach Customer Service Center's website identifies that "All demurrage and detention disputes need to provide below information: BL#, Invoice#, Proof of payment if terminal collect, Amount of refund requested, Container number/s, Relevant dates, Amount of days disputing, and Supported reasons for the dispute." See <https://coscoshippingla.freshdesk.com/support/tickets/new>.

Access Response: Objection: COSCO has failed to provide a copy of this web page as part of its appendix; has not requested judicial notice thereof and has not provided any foundation as to the terms of this webpage during the Relevant Time Period. Further when attempted the web link does not exist. In addition, this proposed fact is not relevant, in that

COSCO has admitted Access had disputed all detention invoices, CF29. Additionally, COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68.

RPFF37. The UIIA addendum provides for the method of dispute resolution. “Motor carrier shall advise Provider in writing of any disputed items on Provider’s invoices within 30 days of the receipt of such invoice(s). Provider will undertake to reconcile such disputed items within 30 working days of receipt of Motor Carrier’s notice and will either provide verification for the charges as invoiced or will issue a credit to the Motor Carrier’s account for any amount not properly invoiced.” UIIA Addendum Section 7 B., CX 00153.

Access Response: Admit the language appears in the UIIA as indicated, however it is not material. Any dispute resolution mechanism in the UIIA does not absolve COSCO from its Shipping Act violations “Ocean carrier practices, whether incorporated in the UIIA, or not, are within the Commission's purview under section 41102(c)” 46 CFR 545.5, Final Rule, 85 FR at 29649 and COSCO admits Access disputed all invoices, CF29 and admits for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68.

III. DISPUTED INVOICES

A. COMMUNICATIONS BETWEEN COSCO AND AOT

RPFF38. When other entities are using its container equipment, COSCO designates a marine terminal (usually terminals) where those containers may be returned and provides such information

to relevant third parties. Answer at 6-7.

Access Response: Admit.

RPFF39. The UIIA Addendum requires the equipment provider to timely advise the equipment user on where to return empty containers. CX00150, COSCO UIIA Addendum, Section 3.

Access Response: Denied as stated. The stated language does not appear in section 3 of the UIIA as indicated. CX00150 However, Access admits COSCO had an obligation to timely advise where to return empty containers.

RPFF40. A dual transaction requires a motor carrier to pick up a full container at the same time that it drops off an empty container. Answer at 1.

Access Response: Admit.

RPFF41. Marine terminal operators, not common carriers, are responsible for imposing dual transaction requirements. *Id.*

Access Response: Denied. COSCO admits as a common carrier it is responsible for having adequate space and procedures for the return of empty containers, see COSCO response to CF 115. To the extent a marine terminal uses dual transactions to facilitate COSCO's needs, COSCO remains responsible for their actions. Response to CF 115 and 85 FR 29638, 29650 (2020).

RPFF42. During the relevant time period, there were some occasions when the designated

return terminal imposed a dual transaction requirement and AOT may not have had the requisite full container pick up to allow a delivery of an empty container to the terminal. AOT has entered into the record emails communicating these difficulties to COSCO between February 9, 2022 (CX01400) and April 5, 2022 (CX01373). But COSCO directed AOT to empty return locations that did not have such requirements. *See* RPFF47 (citing CX01397 (email from Philip Taylor stating, *inter alia*, “LBCT is open for empty single returns.”)).

Access Response: Admitted in part and denied in part. Admit that Access had the inability to comply with dual requirements and produced emails in support of this position. Admits COSCO suggested LBCT would accept empties without dual requirements on February 10, 2022 (a Thursday), but denies that as a factual basis any appointments existed for the return of the empty containers at the time the email was sent, see CX01396. Access also denies it did not return containers as suggested by COSCO during the weekend of February 12-13, 2022. The declaration of Thompson indicates Access consulted the COSCO terminal broadcast and attempted to obtain appointments on at least a *daily basis*, See Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶ 2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). Access, per its ordinary procedure continued to seek appointments on a daily basis and was able to return containers during that weekend on February 13, 2022. see Access Claim Summary CX1430-CX1435, column N. Also, COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68.

RPFF43. On Wednesday, February 9, 2022, AOT President Nobu Suzuki emailed COSCO representatives Susy McKellar and Lu Guanlin with a list of containers, saying that, “We have been sending daily emails for return locations and still do not have return locations unless a dual, even at that lack of appointments. . . Please stop the clock on all these containers as we have too many [empties] for cosco sitting and I don’t not want to billed [sic] for per diems we are not at fault.” CX01402.

Access Response: Admit in part and denied in part. The quoted language did appear in Mr. Suzuki’s email but denied to the extent COSCO asserts the quoted language was complete. See CX01401-CX01403 for the complete email.

RPFF44. That same day, COSCO’s Suzy McKellar responded with instructions to dispute per diem charges if empty containers could not be returned prior to the last free day and directing Mr. Suzuki to COSCO’s per diem dispute department, shaperdiem@cosco.com, in Shanghai. CX01401.

Access Response: Admit in part and denied in part. The quoted language did appear in the referenced email but denied to the extent COSCO asserts the quoted language was complete. See CX01400-CX01401 for the complete email.

RPFF45. Mr. Suzuki responded to Ms. McKellar bemoaning the lack of appointment availability, saying that, “the whole SoCal market is gunning for these appointments.” CX01400.

Access Response: Admit in part and denied in part. Access admits the existence of the quoted language but Denies to the extent COSCO asserts the quoted language was complete. See CX01400-CX01401 for the complete email. For example, Mr. Suzuki also stated “Can we

bill cosco for mty storage and additional chassis days ? All of our chassis are hung up on MTYs ? By this Friday we will have another 20-30 mtys op top of the ones I sent you”; which unknowingly portended the damages suffered by Access claimed herein.

RPFF46. On Thursday, February 10, Ms. McKellar added Phillip Taylor, COSCO’s LA/LB Deputy General Manager, to the email thread, saying, “Kindly ask for your guidance or any suggestion regarding empty return challenges to our good customer Tireco and Access One Logistics Inc., their trucking company.” CX01396-01397.

Access Response: Admit to the extent quoted but denied to the extent COSCO asserts the quoted language was complete. See CX01397-1398 for the complete email.

RPFF47. Mr. Taylor responded promptly that, “LBCT is open for empty single returns. Additional appointments were released today, and there will be no issue securing empty return appointments during Friday night, or Saturday/Sunday day shifts. *Please plan to take advantage of the weekend offering.* ETS is also open for return tonight and tomorrow. PCT will accept empties on WCCP chassis.” CX01397 (emphasis added).

Access Response: Admitted in part and denied in part. Admits Mr. Taylor *suggested* LBCT would accept empties without dual requirements on February 10, 2022 (a Thursday), but denies that as a factual basis any appointments existed for the return of the empty containers at the time the email was sent, see CX01396. Access also denies it did not return containers as suggested by COSCO during the weekend of February 12-13, 2022. The declaration of Thompson indicates Access consulted the COSCO terminal broadcast and attempted to obtain appointments on at least a daily basis, See Dec. of Thompson, ¶¶ 7-9, CX01447,

Supplemental Dec. of Thompson, ¶¶2-4, CX 01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”). Access, per its ordinary procedure continued to seek appointments on a daily basis and was able to return containers during that weekend on February 13, 2022. see Access Claim Summary CX1430-CX1435, column N.

RPFF48. Following this message from Mr. Taylor, Mr. Suzuki told TireCo (the consignee of the shipments) representatives, “LBCT shows open but there is no appointments available.” CX1396. Mr. Suzuki did not otherwise respond to COSCO following Mr. Taylor’s email. *Id.*

Access Response: Admit Mr. Suzuki stated: “LBCT shows open but there is no appointments available.” As to the additional statement: Mr. Suzuki did not otherwise respond to COSCO following Mr. Taylor’s email, such statement is objected to on the basis of lack of foundation and speculation. At best there was nothing further on the email string at CX001396. Further it is not material as there was no further response necessary as the email from Mr. Taylor only concerned a single weekend in any event.

RPFF49. AOT submitted eleven (11) total customer service tickets to COSCO’s LA/LB Equipment Control Department – *not* the Shanghai per diem dispute department at shaperdiem@cosco.com – identifying problems returning empty containers to LA/LB. On Friday, February 11, 2022, AOT submitted its first ticket (#510775) for issues returning empty containers at LA/LB, citing “No return location for 40 HC single.” CX01384.

Access Response: Admitted in part and denied in part. Denied to the extent COSCO asserts the tickets should have been sent to the Shanghai per diem dispute department. Per

COSCO's instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384 (additional documents also provide this instruction as found in Access' Appendix but specific citation would be duplicative). COSCO's instructions do not identify the email address as being part of COSCO's equipment control department and COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28. Access objects to the characterization of ticket no. 510775 as Access' "first" ticket as COSCO has not provided any foundation or evidence for such a claim. Access admits it provided in evidence 11 tickets sent to COSCO concerning difficulties returning empty containers and submitted ticket no 510775 on or about February 11, 2022.

RPFF50. On Thursday, February 17, 2022, AOT submitted a ticket to COSCO (#514951) for issues returning empty containers at LA/LB, citing "No return locations for 40 HC single." CX01392-01393.

Access Response: Admit in part and denied in part. Admit to the extent quoted but Denied that the quoted language is complete. Ticket to COSCO #514951 also contains the notations

No return locations for 40 HC single

PCT: WCCP Only

WBCT: Not accepting today

LBCT: No appts available See CX01393

Further, additional emails provide information as to ticket no 51491 see CX0149-CX0156 CX01385-CX01394.

RPFF51. On Thursday, March 24, 2022, AOT submitted a ticket to COSCO's LA/LB Equipment Control Department (#540204) for issues returning empty containers at LA/LB, saying "No return location for 40 HC single." CX01357.

Access Response: Admit in part and denied in part. Admit to the extent quoted but Denied that the quoted language is complete. Ticket to COSCO #540204 also contains the notations

No return location for 40 HC single

PCT: Dual/WCCP Only

LBCT: No appts

WBCT: No appts See CX01357-CX01358

Further, additional emails provide information as to ticket no 540204 see CX01318-CX1319. Per COSCO's instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384. COSCO's instructions do not identify the email address as being part of COSCO's equipment control department and COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28.

RPFF52. On Friday, March 25, 2022, AOT submitted a ticket to COSCO's LA/LB Equipment Control Department (#541128) for issues returning containers at LA/LB, saying "No return location for 40 HC single." CX01359.

Access Response: admit to the extent quoted but is incomplete. The ticket to COSCO #541128 also contains the notations

No return location for 40 HC single

PCT: Dual/WCCP Only

LBCT: No appts

WBCT: No appts See CX01359-CX01360

Further, additional emails provide information as to ticket #541128 see CX01320. Per COSCO's instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384. COSCO's instructions do not identify the email address as being part of COSCO's equipment control department and COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28.

RPFF53. That same day, March 25, 2022, COSCO's LA/LB Equipment Control Department advised AOT, "Unfortunately the Equipment Control Department does not have the authority to waive per diem, Exempt, and cannot Stop the Per Diem Clock for issues by the Terminal's appointment system but you may file a dispute with Shanghai Per Diem" and provided the shaperdiem@cosco.com email addresses. CX01320.

Access Response: Admitted in part and denied in part. Admitted to the extent the email quoted but denied to the extent COSCO asserts the quoted language was complete. See CX01320 for the complete email. For example, COSCO's suggestion was to "keep checking" terminal sites. CX01320. The email does not identify the sender as being from COSCO's equipment control department and COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28.

RPFF53. On Monday, March 28, 2022, AOT submitted a ticket to COSCO's LA/LB Equipment Control Department (#541968) for issues returning empty containers at LA/LB, saying,

“No return location for 40 HC single.” CX01361.

Access Response: admit to the extent quoted but is incomplete. The ticket to COSCO #541968 also contains the notations

No return location for 40 HC single

PCT: waiting on update from PCT web

LBCT: No appts

WBCT: No appts See CX01361-CX01362

Further, additional emails provide information as to ticket #541968 see CX01321-CX01322.

Per COSCO’s instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384. COSCO’s instructions do not identify the email address as being part of COSCO’s equipment control department and COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28.

RPFF54. On Tuesday, March 29, 2022, AOT submitted a ticket to COSCO’s LA/LB Equipment Control Department (#543102) for issues returning empty containers at LA/LB, saying, “Need to return location [sic] for 40 HC single.” CX01363.

Access Response: admit to the extent quoted but is incomplete. See CX01363-CX01364.

Further, additional emails provide information as to ticket #543102 see CX01323-CX1330;

Per COSCO’s instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384. COSCO’s instructions do not identify the email address as being part of COSCO’s equipment control department and COSCO has otherwise implied the recipient may be part of the customer

service dept., see RPFF28.

RPFF55. In response to AOT's emails regarding its inability to execute a dual transaction, COSCO responded on March 29, 2022, "We ask you to please continue checking and monitor for next available appointment or cancellation for returns." CX01328.

Access Response: Admit in part and denied in part. The email quote exists but is incomplete and out of context. The quoted email was part of an email string between Access and COSCO where COSCO reported to Access that "WBCT was the only terminal receiving for a single". CX01130. Access replied "Ok, noted (but No appts as of now at WBCT) and provided a supporting screenshot CX01328-CX01329. COSCO's response to Access' email was the quoted language to "keep trying"!

RPFF56. On Wednesday, March 30, 2022, AOT submitted a ticket to COSCO's LA/LB Equipment Control Department (#544177) for issues returning empty containers at LA/LB, saying "Need return location for 40 HC single." CX01365.

Access Response: Admit to the extent quoted but the fact is incomplete. See CX01365-CX01366. Further, additional emails provide information as to ticket #544177 see CX01331-CX01332; Per COSCO's instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384. COSCO's instructions do not identify the email address as being part of COSCO's equipment control department COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28.

RPFF57. On Thursday, March 31, 2022, AOT submitted a ticket to COSCO's LA/LB Equipment Control Department (#545045) for issues returning empty containers at LA/LB, saying, "Need 40 Ft single empty return locations." CX01367.

Access Response: Admit to the extent quoted but is incomplete. See CX01367-CX01368. Further, additional emails provide information as to ticket #545045 see CX01333-CX1334; Per COSCO's instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384. COSCO's instructions do not identify the email address as being part of COSCO's equipment control department COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28.

RPFF58. On Friday, April 1, 2022, AOT submitted a ticket to COSCO's LA/LB Equipment Control Department (#545918) for issues returning empty containers at LA/LB, saying, "Need 40 FT return location for single." CX01369.

Access Response: Admit to the extent quoted but is incomplete. See CX01369-CX01370. Further, additional emails provide information as to ticket #545918 see CX01335; Per COSCO's instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384. COSCO's instructions do not identify the email address as being part of COSCO's equipment control department COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28.

RPFF59. On Monday, April 4, 2022, AOT submitted a ticket to COSCO's LA/LB Equipment

Control Department (#546948) for issues returning empty containers at LA/LB, saying, “Need return locations for 40 HC single.” CX01371.

Access Response: Admit to the extent quoted but is incomplete. See CX01371-CX01372. Further, additional emails provide information as to ticket #546948 see CX01336-CX01346; Per COSCO’s instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384. COSCO’s instructions do not identify the email address as being part of COSCO’s equipment control department COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28.

RPFF60. On Tuesday, April 5, 2022, AOT submitted a ticket to COSCO’s LA/LB Equipment Control Department (#548289) for issues returning empty empty containers at LA/LB, saying “Need 40 FT empty return for single.” CX01373.

Access Response: Admit to the extent quoted but is incomplete. See CX01373-CX01374. Further, additional emails provide information as to ticket #548289 see CX01347; Per COSCO’s instruction tickets should be sent to <https://coscoshippingla.freshdesk.com/support/home> for example see CX01384. COSCO’s instructions do not identify the email address as being part of COSCO’s equipment control department COSCO has otherwise implied the recipient may be part of the customer service dept., see RPFF28.

RPFF61. Of the eleven tickets AOT submitted to COSCO’s LA/LB Equipment Control Department, none identified issues obtaining appointments for weekend days. *See* RPFFs 49-60.

Response: Objection, speculative, no authentication and misstates the document. The references only state in general terms the issue of the ticket which under a fair reading could encompass any date. Further COSCO has failed to produce the tickets themselves, thus this statement is speculation. The tickets reflected in the emails cited, do not exclude weekends. Also, COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68.

RPFF62. AOT has introduced no evidence that it ever took advantage of any weekend appointment slots, contrary to COSCO General Manager Phillip Taylor’s express instructions.

Access Response: Objection; assumes facts not in evidence and misstates the evidence and lacks foundation. Further this fact should be disregarded as it is without any evidentiary support. See (see, the Presiding Officer’s Scheduling Order herein served July 3, 2024, at page 3 which requires “Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact.”) . It also misstates the “express instruction”. Mr. Taylor’s suggestion only concerned the weekend of February 12-13, 2022.

Without waiving said objections, denied. The declaration of Thompson indicates Access consulted the COSCO terminal broadcast and attempted to obtain appointments on at least a daily basis, See Dec. of Thompson, ¶¶ 7-9, CX01447, Supplemental Dec. of Thompson, ¶¶2-4, CX01478-CX01480; Dec. of Suzuki, ¶15, CX01443 (“Access had dedicated employees who were responsible to attempt to secure appointments throughout the day”) .

Fact RPF62 is patently false. COSCO's instruction was for one specific weekend, February 12-13, 2022 (CX01397) not a continuing notice that illusory appointments were available on weekends, which Access already sought out on a routine basis. At the time the email was sent to Access, on the date the email was sent, February 10, 2022, Access found no appointments were available. See CX01396. Nevertheless, Access, per its ordinary procedure continued to seek appointments on a daily basis and was able to return 17 containers on weekend days February 13, 2022, February 19-20, 2022 and February 26, 2022, see Access Claim Summary CX1430-CX1435, column N. COSCO provides no evidence whatsoever that appointments were available for the return of COSCO's empties on any weekend date on which Access possession of empty containers. Instead, COSCO, by its actions, has admitted that locations and appointments were not available for the return of empties, CF41, 43, 44 and 69. Also, COSCO has now admitted for all cancelled invoices and their related billed dates, Access "was able to demonstrate container return appointment unavailability" see COSCO Response to CF 68.

WAIVERS GRANTED TO DATE

RPF63. Despite its contractual obligation to COSCO to return empty containers during free time, AOT returned at least 379 containers after free time had expired. CX01430-01439.

Access Response: Objection to the "fact" to the extent COSCO asserts it as a legal conclusion as Access has demonstrated valid excuse and defenses for not returning the empty containers during free time. Without waiving said objection, on a factual basis alone, Access admits that containers were returned after free time because of COSCO's inability to provide adequate space for the timely return of empties which COSCO admits; see response to CF

1115. Also, COSCO has now admitted for all cancelled invoices and their related billed dates, Access “was able to demonstrate container return appointment unavailability” see COSCO Response to CF 68.

RPFF64. Of these 379 containers for which AOT incurred detention charges, COSCO has waived charges for all but 61 containers. Brief at 9.

Access Response: Access admits that COSCO cancelled detention invoices except for 61 remaining containers.

RPFF65. The total amount COSCO has waived is \$307,990.00. Brief at 38.

Access Response: Admitted in essence but the fact misstates the language of Access’ brief. Instead, Access stated COSCO has *cancelled* detention charges in whole or part on 319 containers totaling \$307,000.00, Access Opening Brief at 38.

RPFF66. AOT’s list of 61 disputed charges identify detention charges incurred on 57 dates ranging from September 22, 2021 through July 7, 2022. CX01430-01439.

Access Response: Admitted in part and denied in part. Admit COSCO has not cancelled detention for 61 containers. The date range for the totality of the containers where Access paid detention is September 13, 2021 – July 7, 2022 See Access Claim Summary, CX01430-01435, Access Terminal Availability Summary CX1436-CX1439. However, for the containers on which COSCO has not cancelled detention the relevant date range is March 16, 2022 – July 7, 2022.

RPFF67. The total amount of detention charged on the 61 containers at issue is \$45,995.00. Br. at 38. **Access Response: Admit the unpaid detention was \$45,995.00. However in review of this information to respond to this fact, for clarification the total of \$45,995.00 detention was paid on 68 containers. 6 of which COSCO has already cancelled the related invoices thereon without refunding the detention. The 6 containers which Access paid detention and COSCO later waived the charges thereon are CSNU1322655, CAIU9259524, CSNU7687964, TCNU6331059, CSNU6807936 and OOLU6928489: See Access Claim Summary, CX01430-01435, Access Terminal Availability Summary CX1436-CX1439.**

RPFF68. Of those 57 dates on which COSCO upheld invoiced detention charges, COSCO had previously invoiced and waived charges for 32 days. COSCO did not waive any detention charges for 25 of the 57 dates on which detention charges were sustained. CX01430-01439.

Access Response: Denied in part. COSCO has not cancelled detention charges for 62 containers on 54 dates, September 22, 23, 24, 27, 2021, March 16, 17, 18, 21, 22, 23, 24, 25, 28, 2022; April 1, 4, 5, 6, 7, 8, 11, 12, 15, 18, 19, 20, 21, 22, 25, 26, 27, 28, 29, 2021; May 2, 3, 4, 5, 6, 9, 10, 12, 13, 16, 17, 18, 19, 20, 23, 24, 2022; June 28, 29, 30, 2022; July 6, 7, 2022. See Access Claim Summary, CX01430-01435, Access Terminal Availability Summary CX1436-CX1439.

RPFF69. Of the 25 dates on which COSCO did not waive any detention charges, AOT provided supporting Blue Cargo screenshots for only 15 of those dates. *See* CX01092-01302. The ten dates for which AOT has not provided supporting documentation demonstrating lack of appointments are May 2, 3, 13, 16, 17, 18, 19, 20, 23 and 24, 2022. *Id.*

Response: Denied in part admitted in part. Access calculates COSCO did not waive charges

on 23 of the 54 dates. The dates where COSCO did not waive charges were, April 15, 18, 19, 26, 27, 28, 29, 2001 and May 2, 3, 4, 5, 6, 9, 10, 12, 13, 16, 17, 18, 19, 20, 23, 24, 2021. See Access Claim Summary CX01430-01435 and Access Terminal Availability Summary CX01436-1439. Access denies that it did not submit documentation supporting all dates. To the extent Blue Cargo information was not available, Access provided supporting documentation for all dates via Blue Cargo, eModal information and testimony from Access witnesses to demonstrate the lack of appointments see CF25 and evidence thereon.

RPFF70. Of the 61 disputed detention charges, 19 containers incurred detention charges at least partially on those May 2022 dates for which AOT has not provided evidence demonstrating that no terminal appointments were available (*compare* CX01430-01439 with CX01092-01302):

	Container Number	Invoice Number	Dates Lacking Documentation
1	FFAU3181482	HOU00091151	May 2 – 3, 2022
2	CSNU7195096	HOU00091152	May 2, 2022
3	OOCU7578753	HOU00091529	May 2, 2022
4	XYLU8114304	HOU00098379	May 13 – 24, 2022
5	OOLU6850420	HOU00098379	May 13 – 16, 2022
6	UETU5323081	HOU00098379	May 13 -17, 2022
7	FSCU8831653	HOU00098379	May 13 – 16, 2022
8	OOLU9968736	HOU00098380	May 13 – 16, 2022
9	TGBU4854030	HOU00098380	May 13 – 23, 2022
10	DFSU7630915	HOU00098379	May 13 – 16, 2022
11	TEMU6361032	HOU00098380	May 13 – 17, 2022

12	OOLU6893145	HOU00098379	May 13 – 23, 2022
13	TLLU5742117	HOU00098380	May 13 – 16, 2022
14	CSNU8070093	HOU00098380	May 13 – 16, 2022
15	FFAU3186674	HOU00098380	May 16 – 17, 2022
16	FSCU8987440	HOU00098380	May 13 – 18, 2022
17	CAIU9569793	HOU00098380	May 13 – 18, 2022
18	GESU6910574	HOU00098379	May 16 – 23, 2022
19	WBOU7025860	HOU00098379	May 17 – 24, 2022

Access Response: Denied. Access denies that it did not submit documentation supporting all dates. To the extent Blue Cargo information was not available, Access provided supporting documentation for all dates via Blue Cargo, eModal information and testimony from Access witnesses to demonstrate the lack of appointments see CF25 and evidence thereon.

RPFF71. The invoices listed in RPFF70 total \$18,435.00. *See* CX01430.

Response: Admit, as to the per diem charges associated with those containers. Invoice numbers were not provided in RPFF70.

RPFF72. Of the 61 disputed detention charges, AOT did not even attempt to return the container in question until after free time had expired for the following 9 containers:

Container Number	Last Free Date	Date of First Attempted Return
OOCU6910755	April 1, 2022	April 7, 2022
TCNU3739936	April 1, 2022	April 7, 2022

OOCU7227661	April 4, 2022	April 11, 2022
CBHU9551069	April 4, 2022	April 8, 2022
OOCU7067630	April 5, 2022	April 11, 2022
GCXU5485144	June 28, 2022	July 6, 2022
TRHU4010428	June 29, 2022	June 30, 2022
OOLU6928489	April 6, 2022	April 14, 2022
CSNU8517330	June 28, 2022	June 29, 2022

Access Response. Admitted in part and denied in part. Access denies to the extent any early attempt would have been futile and thus should be characterized as “did not even attempt” to return prior to the last free date. Access has provided evidence that on a routine basis checked for available appointments on a daily basis.

RPFF73. Of the 52 remaining containers in dispute, AOT first attempted to return fully 46 of them (88%) on the *very last free day available*. Compare CX10430, columns L and M.

Access Response: Access admits is may have attempted to return empties on the last fee date. However the fact is objected to on the basis it is not material. Access has no obligation to return empty containers before free time. To impose such as requirement would make free time illusory.

Date: January 31, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on January 31, 2025, the foregoing COMPLAINANT'S RESPONSE TO RESPONDENT'S PROPOSED FINDINGS OF FACT has been served upon all interested persons and parties by electronic means pursuant to the below list.

On today's date, a further hard copy has also been sent to the Presiding Administrative Law Judge at the below address via courier for next business day delivery and a hard copy has been sent via courier to counsel for respondent at the below address for next business day delivery. In addition, a word version of this document has been sent via email to the office of the Administrative Law Judges and Respondent's counsel.

Stephen M. Uthoff

Stephen M. Uthoff

Counsel for Respondent COSCO

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